

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint. Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$5,476.75, plus additional litigation costs, less any credits for payments received.

The Defendant made payments of \$450.

A schedule of costs associated with this litigation was included in the papers submitted by Plaintiff.

The Stipulated Agreement was filed 9/9/25.

A dismissal was entered on 10/23/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$5,584.27. Plaintiff shall prepare the order and judgment.

2. 9:00 AM CASE NUMBER: L25-06756

CASE NAME: CAPITAL ONE, N.A. VS. JOSEPH ODOHERTY

***HEARING ON MOTION IN RE: TO SET ASIDE JUDGMENT AND DISMISS ACTION WITHOUT PREJUDICE**

FILED BY: CAPITAL ONE, N.A.

***TENTATIVE RULING**

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background and Analysis

Plaintiff moves to dismiss the underlying case without prejudice, arguing that it is in the best interest of justice to do so, as well as invoking Section 473(d) of the CCP. However, Plaintiff offers no explanation as to why dismissing the case would be in the best interests of justice, or how the judgment was otherwise void under Section 473(d).

Disposition

Plaintiff shall make a showing on date of motion that dismissal in this case is warranted. This court will allow the presentation of oral evidence on date of motion.

3. 9:00 AM CASE NUMBER: L25-11200
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. DERRICK SHELTON
***HEARING ON MOTION IN RE: TO SET ASIDE ENTRY OF DEFAULT**
FILED BY: SHELTON, DERRICK
***TENTATIVE RULING**

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Defendant filed a Motion to set aside Entry of Default - which was filed on 12/26/25 - under Section 473(b) of the Code of Civil Procedure. Plaintiff filed a response.

Analysis

Defendant cites mistake, inadvertence, or excusable neglect, as a reason – or reasons – for his failure to respond to Plaintiff’s Complaint, yet offers no description for the mistake, inadvertence, or excusable neglect.

It is Defendant’s burden to show the court that at least one of these occurred, yet he has failed to do so.

Disposition

The Motion is denied. Plaintiff shall prepare the Order.

4. 9:00 AM CASE NUMBER: MSL06-05109
CASE NAME: CAVALRY PORTFOLIO SERVICES, LLC VS. MARIA URIBE
***HEARING ON MOTION IN RE: TO VACATE DEFAULT JUDGMENT**
FILED BY: CAVALRY PORTFOLIO SERVICES, LLC
TENTATIVE RULING:

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Plaintiff filed a Motion to Set Aside Default Judgment, and dismiss the action, under Section 473 of the CCP, on the basis that the underlying account between Plaintiff and Defendant was the consequence of fraudulent activity against the Defendant.